

19STCV33686 19STCV33686

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C517%2C09%2F09%2F2026

Source SHA-256: 40cfd4e8d428bec9a0de4ab64888cc3944b076027cb8feb44369d44655a948a8

Case Number: 19STCV33686 Hearing Date: September 9, 2026 Dept: 517

The Court sustained Plaintiff/Cross-Defendant James Perry's demurrer to the fraud claim in the Third Amended Cross-Complaint of Defendant/Cross-Complainant Francisco Mesa (1) without leave to amend as to the application of the delayed discovery rule to fend off accrual of the three-year statute of limitations on fraud claims, but (2) with leave to amend as to the application of the equitable tolling doctrine that would stop the running of the statute of limitations. Following that ruling, Mesa filed a Fourth Amended Cross-Complaint for fraud. Perry has demurred on the ground that the allegations in the Fourth Amended Cross-Complaint fail to plead within the ambit of the equitable tolling doctrine. The Court agrees with Perry and is sustaining the demurrer to the Fourth Amended Cross-Complaint without leave to amend. The Court will explain the basis for this ruling, with reference to relevant caselaw, at the hearing on the demurrer this morning.

The fraud claim was the lone one in the Fourth Amended Cross-Complaint. Trial in this case thus will proceed only on Perry's Complaint.